

all his property substantially to trustees upon trust to convert into money and hold the proceeds upon trust for the settlor, or his appointees, was not an act of bankruptcy (*h*).

8. What concomitant circumstances would not vary the rule.

— A fraudulent deed was an act of bankruptcy, notwithstanding a proviso declaring it void *if the trustees thought fit* (*i*), or *if all the creditors should not execute (the acts of the trustees to be good in the meantime)* (*j*); or *if all the creditors to a certain amount should not execute by such a time, or a commission of bankruptcy should issue* (*k*). So it was an act of bankruptcy, though the *trustees* at the time of the execution of the deed did not intend to act upon it (for the fraud was to be referred to the *animus* of the trader) (*l*); and though the trustees induced the debtor to execute it, with the object of making it an act of bankruptcy (*m*); and though the debtor himself meant it to be taken as an act of bankruptcy (*n*).

9. No act of bankruptcy, if deed could not be enforced.—

But if A., B., and C. agreed to execute an assignment as a joint transaction, and A. executed, but B. and C. refused, then, as the assignment of A. was made on the footing and faith of B. and C.'s concurrence, and therefore could not be enforced against A. individually and solely, it was no act of bankruptcy (*o*).

10. Assignment executed abroad.— An assignment executed abroad was at one time held to be *no act [*513] of bankruptcy in England (*a*); but in this respect the law has been altered by statute (*b*).

11. Creditors concurring or acquiescing could not treat it as an act of bankruptcy.— If any creditors either *concurred* in

(*h*) *Greenwood v. Churchill*, 1 M. & K. 546; and see *Berney v. Davison*, 1 Brod. and B. 408; 4 Moore, 126.

(*i*) *Tappenden v. Burgess*, 4 East, 230.

(*j*) *Back v. Gooch*, 4 Camp. 232; *S. C.* Holt, 13.

(*k*) *Dutton v. Morrison*, 17 Ves. 193.

(*l*) *Tappenden v. Burgess*, 4 East, 230.

(*m*) *Id.*

(*n*) *Simpson v. Sikes*, 6 M. & S. 295.

(*o*) *Dutton v. Morrison*, 17 Ves. 193, see 202; and see *Bowker v. Burdakin*, 11 M. & W. 128.

(*a*) *Norden v. James*, 2 Dick. 533; *Ingliss v. Grant*, 5 T. R. 530.

(*b*) 6 G. 4. c. 16, s. 3, repealed and re-enacted by 12 & 13 Vict. c. 106, s. 67, re-enacted in effect by 32 & 33 Vict. c. 71, s. 6; [46 & 47 Vict. c. 52, s. 4.]